



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2003: driver license instruction permit; age

KUPPER FLOOR AMENDMENT

1. Increases, from 30 to 50 hours, the amount of supervised driving practice time required for a person under 18 years qualified to apply for their class G driver license.
2. Stipulates that of the required supervised driving practice time, 20 hours must be at night instead of 10 hours.
3. Increases the required amount of motorcycle driving practice time, from 30 to 50 hours, for a person under 18 years qualified to apply for their class M license or motorcycle endorsement.

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2/23/2026

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KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2003
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-3153, Arizona Revised Statutes, is amended to
3 read:

4 28-3153. Driver license issuance; prohibitions

5 A. The department shall not issue the following:

6 1. A driver license to a person who is under eighteen years of age,
7 except that the department may issue:

8 (a) A restricted instruction permit for a class D or G license to a
9 person who is at least fifteen years of age.

10 (b) An instruction permit for a class D, G or M license as provided
11 by this chapter to a person who is at least fifteen years ~~and six months~~
12 of age.

13 (c) A class G or M license as provided by this chapter to a person
14 who is at least sixteen years of age.

15 2. A class D, G or M license or instruction permit to a person who
16 is under eighteen years of age and who has been tried in adult court and
17 convicted of a second or subsequent violation of criminal damage to
18 property pursuant to section 13-1602, subsection A, paragraph 1 or
19 convicted of a felony offense in the commission of which a motor vehicle
20 is used, including theft of a motor vehicle pursuant to section 13-1802,
21 unlawful use of means of transportation pursuant to section 13-1803 or
22 theft of means of transportation pursuant to section 13-1814, or who has
23 been adjudicated delinquent for a second or subsequent act that would
24 constitute criminal damage to property pursuant to section 13-1602,
25 subsection A, paragraph 1 or adjudicated delinquent for an act that would
26 constitute a felony offense in the commission of which a motor vehicle is
27 used, including theft of a motor vehicle pursuant to section 13-1802,
28 unlawful use of means of transportation pursuant to section 13-1803 or

1 theft of means of transportation pursuant to section 13-1814, if committed
2 by an adult.

3 3. A class A, B or C license to a person who is under twenty-one
4 years of age, except that the department may issue a class A, B or C
5 license that is restricted to only intrastate driving to a person who is
6 at least eighteen years of age.

7 4. A license to a person whose license or driving privilege has
8 been suspended, during the suspension period.

9 5. Except as provided in section 28-3315, a license to a person
10 whose license or driving privilege has been revoked.

11 6. A class A, B or C license to a person who has been disqualified
12 from obtaining a commercial driver license.

13 7. A license to a person who on application notifies the department
14 that the person is an alcoholic as defined in section 36-2021 or a drug
15 dependent person as defined in section 36-2501, unless the person submits
16 a medical examination report that includes a current evaluation from an
17 addiction counselor indicating that, in the opinion of the counselor, the
18 condition does not affect or impair the person's ability to safely operate
19 a motor vehicle.

20 8. A license to a person who has been adjudged to be incapacitated
21 pursuant to section 14-5304 and who at the time of application has not
22 obtained either a court order that allows the person to drive or a
23 termination of incapacity as provided by law.

24 9. A license to a person who is required by this chapter to take an
25 examination unless the person successfully passes the examination.

26 10. A license to a person who is required under the motor vehicle
27 financial responsibility laws of this state to deposit proof of financial
28 responsibility and who has not deposited the proof.

29 11. A license to a person if the department has good cause to
30 believe that the operation of a motor vehicle on the highways by the
31 person would threaten the public safety or welfare.

32 12. A license to a person whose driver license has been ordered to
33 be suspended for failure to pay child support, except that a noncommercial
34 restricted license may be issued pursuant to section 25-518.

35 13. A class A, B or C license to a person whose license or driving
36 privilege has been canceled until the cause for the cancellation has been
37 removed.

38 14. A class A, B or C license or instruction permit to a person
39 whose state of domicile is not this state.

40 15. A class A, B or C license to a person who fails to demonstrate
41 proficiency in the English language as determined by the department.

42 B. The department shall not issue a driver license to or renew the
43 driver license of the following persons:

44 1. A person about whom the court notifies the department that the
45 person violated the person's written promise to appear in court when
46 charged with a violation of the motor vehicle laws of this state until the
47 department receives notification in a manner approved by the department

1 that the person appeared either voluntarily or involuntarily or that the
2 case has been adjudicated, that the case is being appealed or that the
3 case has otherwise been disposed of as provided by law.

4 2. If notified pursuant to section 28-1601, a person who fails to
5 pay a civil penalty as provided in section 28-1601, except for a parking
6 violation, until the department receives notification in a manner approved
7 by the department that the person paid the civil penalty, that the case is
8 being appealed or that the case has otherwise been disposed of as provided
9 by law.

10 C. The magistrate or the clerk of the court shall provide the
11 notification to the department prescribed by subsection B of this section.

12 D. Notwithstanding any other law, the department shall not issue to
13 or renew a driver license or nonoperating identification license for a
14 person who does not submit proof satisfactory to the department that the
15 applicant's presence in the United States is authorized under federal law.
16 For an application for a driver license or a nonoperating identification
17 license, the department shall not accept as a primary source of
18 identification a driver license issued by a state if the state does not
19 require that a driver licensed in that state be lawfully present in the
20 United States under federal law. The director shall adopt rules necessary
21 to carry out the purposes of this subsection. The rules shall include
22 procedures for:

23 1. Verification that the applicant's presence in the United States
24 is authorized under federal law.

25 2. Issuance of a temporary driver permit pursuant to section
26 28-3157 pending verification of the applicant's status in the United
27 States.

28 Sec. 2. Section 28-3154, Arizona Revised Statutes, is amended to
29 read:

30 28-3154. Instruction permit for a class D or G license

31 A. A person who is at least fifteen years ~~and six months~~ of age may
32 apply to the department for an instruction permit for a class D or G
33 license. The department may issue an instruction permit to the applicant
34 after the applicant successfully passes all parts of the examination other
35 than the driving test.

36 B. The instruction permit entitles the permittee to drive a motor
37 vehicle requiring a class D or G license on the public highways for ~~twelve~~
38 EIGHTEEN months when both of the following conditions are met:

39 1. The permittee has the permit in the permittee's immediate
40 possession.

41 2. The permittee is accompanied by a person who has a class A, B, C
42 or D license, who is at least twenty-one years of age and who occupies a
43 seat beside the permittee.

1 C. A permittee may not drive a motor vehicle while using a wireless
2 communication device for any reason except during an emergency in which
3 stopping the motor vehicle is impossible or will create an additional
4 emergency or safety hazard. A peace officer may not stop or issue a
5 citation to a person operating a motor vehicle on a highway in this state
6 for a violation of this subsection unless the peace officer has reasonable
7 cause to believe there is another alleged violation of a motor vehicle law
8 of this state.

9 Sec. 3. Section 28-3156, Arizona Revised Statutes, is amended to
10 read:

11 28-3156. Class M instruction permit

12 A. A person who is at least fifteen years ~~and six months~~ of age may
13 apply to the department for an instruction permit for a class M
14 license. The department may issue an instruction permit to the applicant
15 after the applicant successfully passes all parts of the examination other
16 than the motorcycle skill test.

17 B. The permit entitles the permittee to operate a motorcycle
18 requiring a class M license or endorsement when the permittee has the
19 permit in the permittee's immediate possession. The permit is valid for
20 ~~seven~~ TWELVE months from the date of issuance.

21 C. The permittee shall not operate a motorcycle as follows:

22 1. On a controlled access highway as defined in section 28-601.

23 2. On a public highway from sunset to sunrise or when there is
24 insufficient light to clearly discern a person and a vehicle on the
25 highway at a distance of five hundred feet.

26 D. The department shall not issue more than two class M permits to
27 the same person within twenty-four months.

28 Sec. 4. Section 28-3174, Arizona Revised Statutes, is amended to
29 read:

30 28-3174. Class G driver licenses; restrictions; civil
31 penalties; motorcycles

32 A. A person who is under eighteen years of age may apply to the
33 department for a class G driver license if all of the following apply:

34 1. The person is at least sixteen years of age.

35 2. The person has a valid instruction permit issued pursuant to
36 this article and the person has held the instruction permit for at least
37 ~~six~~ NINE months, except that this requirement does not apply to a person
38 who has a currently valid driver license issued by another jurisdiction.

39 3. Any of the following applies:

40 (a) The person has satisfactorily completed a driver education
41 program that is approved by the department of transportation. If the
42 driver education program is offered by a public high school, the program
43 shall be approved by the department of transportation in consultation with
44 the department of education.

1 (b) Both of the following apply:

2 (i) The person completes a driver education program that is offered
3 by a defensive driving school that is certified pursuant to section
4 28-3395 and that is approved by the supreme court or a traffic survival
5 school.

6 (ii) A custodial parent or guardian of the person certifies in
7 writing to the department that the applicant has completed at least twenty
8 hours of supervised driving practice and that at least six of the required
9 practice hours were at night.

10 (c) A custodial parent or guardian of the person certifies in
11 writing to the department that the applicant has completed at least
12 ~~[thirty]~~ [FIFTY] hours of supervised driving practice and that at least
13 ~~[ten]~~ [TWENTY] of the required practice hours were at night.

14 B. If the applicant successfully passes the examination prescribed
15 in section 28-3164 and satisfies the requirements prescribed in subsection
16 A of this section, the department may issue a class G driver license to
17 the applicant.

18 C. Except as provided in subsection D of this section, a class G
19 driver license entitles the licensee to drive a motor vehicle that
20 requires a class G license on the public highways.

21 D. Except as provided in subsection K of this section, for the
22 first six months that a class G licensee holds the license, the licensee
23 shall not drive a motor vehicle on a public highway from 12:00 a.m. to
24 5:00 a.m. unless either:

25 1. The licensee is accompanied by a parent or legal guardian who
26 has a class A, B, C or D license and who occupies a seat beside the class
27 G licensee.

28 2. The licensee is driving directly to or from a sanctioned school
29 sponsored activity, the licensee's place of employment, a sanctioned
30 religious activity or a family emergency.

31 E. Except as provided in this subsection and subsection K of this
32 section, for the first six months that a class G licensee holds the
33 license, the licensee shall not drive a motor vehicle on a public highway
34 at any time if the licensee is driving a motor vehicle containing more
35 than one passenger under the age of eighteen. This restriction does not:

36 1. Prohibit the licensee from driving a motor vehicle containing
37 passengers under the age of eighteen if the passengers are the licensee's
38 siblings.

39 2. Apply if the licensee is accompanied by a parent or legal
40 guardian who has a class A, B, C or D license and who occupies a seat
41 beside the class G licensee.

42 F. Except as provided in subsection K of this section, for the
43 first six months that a class G licensee holds the license, the licensee
44 may not drive a motor vehicle while using a wireless communication device
45 for any reason except either:

46 1. During an emergency in which stopping the motor vehicle is
47 impossible or will create an additional emergency or safety hazard.

1 2. When using an audible turn-by-turn navigation system if both of
2 the following apply:

3 (a) The destination is not manually entered into the wireless
4 communication device while the licensee is driving the motor vehicle.

5 (b) The licensee does not manually adjust the wireless
6 communication device while driving the motor vehicle.

7 G. A peace officer shall not stop or issue a citation to a person
8 operating a motor vehicle on a highway in this state for a violation of
9 subsection D, E or F of this section unless the peace officer has
10 reasonable cause to believe there is another alleged violation of a motor
11 vehicle law of this state.

12 H. If a licensee is found responsible for violating subsection D, E
13 or F of this section, the licensee:

14 1. For a first violation, is subject to a maximum civil penalty of
15 \$75. The department shall extend the restriction prescribed by subsection
16 D, E or F of this section for thirty days, or if the restriction
17 prescribed by subsection D, E or F of this section is complete, the thirty
18 day restriction begins on the department's receipt of the report of the
19 finding of responsibility.

20 2. For a second violation, is subject to a maximum civil penalty of
21 \$100. The department shall extend the restriction prescribed by
22 subsection D, E or F of this section for sixty days, or if the restriction
23 prescribed by subsection D, E or F of this section is complete, the sixty
24 day restriction begins on the department's receipt of the report of the
25 finding of responsibility. If at the time of the second violation the
26 licensee is subject to an extension of the six month period pursuant to
27 paragraph 1 of this subsection, the extensions run consecutively.

28 3. For a third or subsequent violation, is subject to a maximum
29 civil penalty of \$100. On the department's receipt of the report of the
30 finding of responsibility, the department shall suspend the licensee's
31 driving privilege for thirty days. If the licensee also has a suspension
32 resulting from a moving civil traffic violation or a moving criminal
33 traffic offense as prescribed by section 28-3321, the suspensions run
34 consecutively.

35 I. A citation issued for violating subsection D of this section
36 shall be dismissed if the licensee to whom the citation was issued
37 produces any of the following evidence to the appropriate court officer on
38 or before the date and time specified on the citation for court appearance
39 and in a manner specified by the court:

40 1. A written, notarized letter from the parent or legal guardian of
41 the licensee that the licensee was going to or returning from a sanctioned
42 school sponsored activity, the licensee's place of employment, a
43 sanctioned religious activity or a family emergency.

1 2. A written, notarized letter from a representative of the
2 sanctioned school sponsored activity certifying that the licensee was
3 returning from the school activity.

4 3. A written, notarized letter from the licensee's employer
5 certifying that the licensee was returning from the licensee's place of
6 employment.

7 4. A written, notarized letter from a representative of the
8 sanctioned religious activity certifying that the licensee was returning
9 from the religious activity.

10 J. A citation issued for violating subsection E of this section
11 shall be dismissed if the licensee to whom the citation was issued
12 produces a written, notarized letter from the parent or legal guardian of
13 the licensee to the appropriate court officer on or before the date and
14 time specified on the citation for court appearance and in a manner
15 specified by the court that states the passengers in the vehicle with the
16 licensee at the time of the violation were the siblings of the licensee.

17 K. The restrictions imposed by subsection D, E or F of this section
18 do not apply beginning on the licensee's eighteenth birthday. Any
19 penalties or restrictions imposed pursuant to subsection H of this section
20 shall be fully satisfied even if the licensee is eighteen years of age or
21 older.

22 L. A person who holds a class G driver license may apply for a
23 class D license on or after the person's eighteenth birthday, except that
24 a person whose class G driver license is suspended pursuant to section
25 28-3321 is not entitled to receive a class D driver license until after
26 the suspension period expires.

27 M. If a person who is under eighteen years of age and at least
28 sixteen years of age applies for a class M license or a motorcycle
29 endorsement, the department shall not issue the class M license or
30 motorcycle endorsement to the person unless both of the following apply:

31 1. The applicant has held an instruction permit issued pursuant to
32 section 28-3156 for at least ~~six~~ NINE months, except that this requirement
33 does not apply to a person who has a currently valid motorcycle driver
34 license or endorsement issued by another jurisdiction.

35 2. Either:

36 (a) The person has satisfactorily completed a motorcycle driver
37 education program that is approved by the department. If the driver
38 education program is offered by a public high school, the program shall be
39 approved by the department of transportation in consultation with the
40 department of education.

41 (b) A custodial parent or guardian of the person certifies in
42 writing to the department that the applicant has completed at least
43 [thirty] [FIFTY] hours of motorcycle driving practice.

House Amendments to H.B. 2003

1 Sec. 5. Short title
2 This act may be cited as the "Juveniles Unlocking Driver Education
3 (JUDE) Act".

4 Enroll and engross to conform
5 Amend title to conform

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